

Deepak Kumar vs Meenu Sirohi on 19 November, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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IN THE HIGH COURT OF DELHI AT NEW DELHI

MAT.APP.(F.C.) 111/2020 and CM No.24463/2020 (stay)

DEEPAK KUMAR

..... Appellant

Through:

Mr.Lakshay Joshi, Advocate.

versus

MEENU SIROHI

..... Respondent

Through:

Mr.Jaiveer Chaudhary, Advocate.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 19.11.2020 HEARD THROUGH VIDEO CONFERENCING.

1. On the last date of hearing, none was present on behalf of the respondent. Mr.Lakshay Joshi, learned counsel for the appellant was directed to send a fresh intimation of the next date of hearing in the appeal to the counsel for the respondent and the respondent and place on record proof of intimation.

2. Mr.Lakshay Joshi, learned counsel for the appellant states that he has filed proof of effecting service of this appeal on the respondent as also her counsel. On the first call, the matter was passed-over to await the presence of the respondent and/or her counsel. On the second call, Mr.Jaiveer Chaudhary, Advocate on whom a copy of the paper book is stated to have been served by learned counsel for the appellant, had logged in but half way through the arguments on admission, he has logged out.

3. In view of the fact that learned counsel for the respondent had logged out of the hearing, the Court Master was requested to contact him telephonically. He has informed us that on asking learned counsel for the respondent to rejoin, he sought to explain that he is having some connectivity issues and unable to do so.

4. The appellant has assailed the judgment dated 04.03.2020, passed by the learned Family Court whereunder, a petition filed by the respondent under Sections 11 and 12(1c) of the Hindu Marriage Act for grant of a decree of nullity of the marriage of the parties, has been allowed and the marriage has been annulled. A perusal of the impugned judgment reveals that though the respondent had

tendered her evidence, appeared in the witness box as PW-1 and was partly cross-examined by the appellant on 15.10.2019, he had failed to take any further steps to cross-examine the respondent whose evidence was finally closed by the learned Family Court vide order dated 09.01.2020. It has also been noted by the learned Family Court that the appellant herein had failed to file the list of witnesses or the affidavit of his witnesses. He did not even enter the witness box. Finally, the appellant's right to lead evidence was closed vide order dated 28.01.2020.

5. It is not disputed by Mr.Lakshay Joshi, learned counsel for the appellant that the appellant did not take any steps to file an appeal against the aforesaid order passed by the learned Family Court, closing his right to cross-examine the respondent and closing his right to lead the evidence. Instead, learned counsel for the parties proceeded to address arguments in the appeal on 17.02.2020, which was followed by the impugned judgment being pronounced on 04.03.2020.

6. Learned counsel for the appellant has addressed arguments to assail the impugned judgment on the ground that the learned Family Court has erred in closing the right of the appellant to cross-examine the respondent and in closing his right to lead evidence but has not been able to demonstrate the steps that were taken by the appellant to lay a challenge thereto by preferring an appeal under Section 19 of the Family Court Act. Learned counsel states that he may be given another opportunity to make submissions on the above aspect as he is presently suffering from COVID- 19 infection and is not in a position to cite any decision.

7. At the request of the learned counsel for the appellant, list for admission on 12.02.2021.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J NOVEMBER 19, 2020 tr/rkb